Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO PARLIAMENT
Bangsamoro Government Center, Cotabato City

FOURTH REGULAR SESSION

RESOLUTION NO. 260

RESOLUTION REQUESTING GOVERNMENT AGENCIES OPERATING IN THE BARMM TO OBSERVE A RESPECT FOR HIJAB POLICY IN THE CONDUCT OF GOVERNMENT BUSINESS, AND REQUESTING THE BANGSAMORO HUMAN RIGHTS COMMISSION (BHRC) AND BANGSAMORO WOMEN COMMISSION (BWC) TO CONDUCT ADVOCACY BUILDING ON THE IMPLEMENTATION OF THE HIJAB POLICY

WHEREAS, Section 5, Article III of the 1987 Philippine Constitution provides:

"No law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof. The free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed. No religious test shall be required for the exercise of civil or political rights." xxx

WHEREAS, the wearing of a *hijab* forms part of a Muslim woman's religious identity, and for Bangsamoro women, even a part of her cultural and traditional identity, the recognition of such right is protected under Section 28 of Republic Act No. 9710, or the Magna Carta of Women:

"Recognition and Preservation of Cultural Identity and Integrity. – The State shall recognize, and respect the rights of Moro and indigenous women to practice, promote, protect, and preserve their own culture, traditions, and institutions, and to consider these rights in the formulation, and implementation of national policies and programs. To this end, the State shall adopt measures in consultation with the sectors concerned to protect their rights to their indigenous knowledge systems and practices, traditional livelihood, and other manifestations of their cultures and ways of life: Provided, that these cultural systems and practices are not discriminatory to women." xxx

WHEREAS, the Commission on Human Rights (CHR) has already issued a policy advisory in 2013 on the right of women to wear their headscarves, providing therein that such practice must be respected, and State instrumentalities must ensure that this religious freedom shall not be breached;

WHEREAS, the National Bureau of Investigation (NBI) has issued Memorandum No. 28, series of 2008, allowing Muslim women and nuns to wear their religious veils and headscarves in their photos;

WHEREAS, the Civil Service Commission (CSC) also released its Memorandum Circular No. 20, series of 2014, providing clarification on the wearing of the *hijab* by Muslim women in the workplace;

WHEREAS, the Bangsamoro Human Rights Commission (BHRC) and the Bangsamoro Women Commission (BCW) are duly mandated agencies to implement, and monitor programs on women's human rights in the Bangsamoro region;

WHEREAS, there were reports of Muslim women being requested to remove their *hijabs*, or to make their ears visible, in the capturing of front-facing photos for the Philippine Identification Card (National ID) and passport, which requirements are not imposed in other regions, particularly the National Capital Region;

WHEREAS, reports were received as regards the failure of some regional government agencies to observe the policies set by national government agencies as regards the wearing of religious clothing

in the conduct of government business, with Muslim women being required to remove their *hijab* or adjust their clothing to comply with requirements:

NOW, THEREFOR, be it

RESOLVED, by the Bangsamoro Transition Authority Parliament, as it is hereby resolved, To request government agencies operating in the BARMM to observe a respect for *hijab* policy in the conduct of government business, and requesting the Bangsamoro Human Rights Commission and Bangsamoro Women Commission to conduct advocacy building on the implementation of the *hijab* policy.

RESOLVED, FURTHER, To request all regional government agencies to implement the *Hijab* policy, as provided in CSC Memo. Circular No. 20, s. 2014, providing the following:

1. The wearing of *hijab* among Muslim women shall be allowed in all government institutions;
2. Muslim women working in hospitals and other public care institutions must also be allowed to wear their *hijab* at work; and
3. Government institutions that require taking of pictures, such as for passport application, registration for licensure examinations, application for clearances, and the like, may set conditions as regards the wearing of the *hijab*, provided, however, that said conditions should not run counter to the concept of modesty, morality, and privacy that the wearing of religious veil represents.

RESOLVED, FURTHERMORE, That all BARMM ministries and offices that perform other functions and deliver other services are required to set in place sufficient precautions and conditions that ensure the protection and upholding of the modesty and privacy of women, particularly in relation to the wearing of their religious garments, and to request the BHRC and BWC to conduct advocacy building, including crafting guidelines on a *hijab* policy consistent with the above and monitoring of its policy implementation, as well as to support the call of women to uphold their right to wear *hijab* in the conduct of business with government offices.

RESOLVED, FINALLY, That copies of this Resolution be furnished to the Commission on Human Rights and the Philippine Commission on Women.

ADOPTED, *Dhu Al-Hijjah* 29, 1443/July 28, 2022.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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